6 India's Democratic Government

Learning Outcomes

The learner:

- identifies the key features of India's government.
- states the main functions of the executive, legislature and judiciary and explains the system of checks and balances.
- explains the federal structure of government and identifies the bodies that function in the centre and in the states.
- recognizes the division of power between the centre and the states.
- evaluates the structure of government in the union territories.

Let's Take-off

Communictaion

In a democracy, people choose the government which must govern according to a constitution. Talk about:

- the importance of people in a democracy.
- the importance of a constitution in a democracy.

C-6.1

As you have read in the Preamble to the Constitution, India is a democracy. It is a form of government in which a constitution guarantees Fundamental Rights to all the people. There are fair and free elections and courts where people can go if there is any disagreement.

DIVISION OF STATE POWERS IN INDIA

The word '**state**' has several meanings. You already know that India has several states—this is one meaning. State also means a country that is controlled by one government.

India's Constitution gives the state several powers. It has divided these powers into three branches. The chart here shows you the three branches within the Indian state.

THREE BRANCHES OF STATE POWER

- **THE LEGISLATURE** makes the laws.
- **THE EXECUTIVE** makes policies.
- **THE JUDICIARY** makes sure that the laws are obeyed.

CHECKS AND BALANCES

The Indian system is designed in such a way that the three branches of the Indian state can act as a check on each other. They can balance the power so that no branch becomes too powerful. This is called a system of checks and balances and is a very important part of a democracy.

HOTS Critical Thinking 21st Century Skills

Why has the Constitution given the powers of the state to three different branches and not to only one branch? C-6.1

Think and Answer Critical Thinking 21st Century Skills

The executive introduces a law which does not permit people, newspapers or the media to speak about several things. The legislature approves it. It becomes the law. Some people take the case to the judiciary. The court decides that the law is against the Constitution and strikes it down.

- Which branch of the state acted as a check on the other parts?
- How did the people act to balance the power of two branches of the state?

INDIA HAS A FEDERAL STRUCTURE

India's union government has its offices at New Delhi. Each state also has a government. This is a **federal** structure of government. The President of India, or the Rashtrapati, is the head of the country. Similarly, the Governor, or Rajyapal, is the head of the state.

The Legislature

There are legislatures at the centre and in the states.

At the Centre

- The central legislature is called **Sansad** or Parliament. It has two 'Houses'—the **Lok Sabha** and the **Rajya Sabha**. A person elected to the Parliament is called a Member of Parliament (MP).
- Parliament has important powers. It (a) makes laws for the whole country (b) keeps a check on how the executive branch at the centre functions and (c) discusses how the executive branch will get and spend money.

This was Sansad Bhavan, or Parliament House until 2023, when a new, larger one was inaugurated. The Constituent Assembly met in this building.

In the States

- The legislature is called the Legislative Assembly or the **Vidhan Sabha**. A person elected to the Legislative Assembly is called a Member of the Legislative Assembly (MLA).

Did You Know?

Legislatures are known by different names in different countries: Parliament (the UK), Congress (the USA), Jatiyo Shangsad (Bangladesh), Diet (Japan), Le Parlement (France) and Majlis (Maldives).

- The state legislatures have similar powers as the Centre. They (a) make laws for the states; (b) keep a check on the functioning of the executive branch; and (c) discuss and approve the plan of the executive for getting and spending money.

The Executive

After an election to the Lok Sabha or the Vidhan Sabha, the party or group that has the largest number of MPs or MLAs forms the government. Though the President is the head of the country and the Governor is the head of a state, the actual power is with the government because its members have been elected by the people.

The head of government at the centre is the Prime Minister and in the states it is the Chief Minister. They choose their ministers who are responsible for different areas of government work.

Statues of three former Prime Ministers: Lal Bahadur Shastri, Indira Gandhi, Atal Bihari Vajpayee

Important functions of the executive

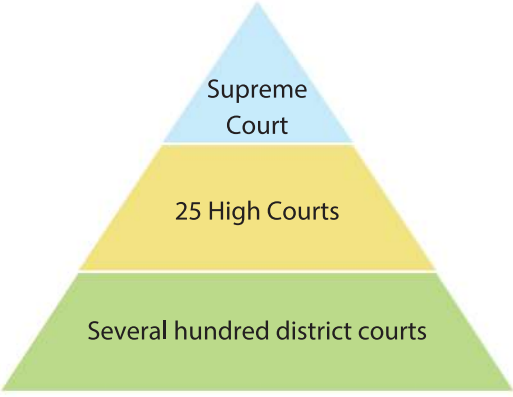
- Ministers make sure that government policies are carried out.
- Governments plan and present laws to the Parliament or to the Vidhan Sabha.
- Governments also prepare plans about how to get and spend money.

Did You Know?

The plan that governments prepare on how they will get and spend money which is presented to legislatures, is called a 'budget'.

The Judiciary

The legislature and the executive are different at the centre and in the states. However, the judiciary of the entire country is one system. It is like a **pyramid**.



At the top of the pyramid is the Supreme Court. It is the highest court and is located at New Delhi. Its head is the Chief Justice of India.

High Courts are the middle level. There are 25 High Courts and each has a Chief Justice as its head.

At the lowest level of the pyramid are the District Courts. There are several hundred district courts in India.

The pyramid-shaped structure of the Indian judiciary

The pyramid-shaped structure of the Indian judiciary

The responsibilities of the judiciary are:

- To protect the rights and freedoms of Indians
- To explain the meaning of the Constitution when it is not clear
- To deliver justice—to make sure that people get fair treatment
- To settle **disputes** according to the law

A Better World

Sustainable Development Goals (SDGs)

Goal 16: Peace, Justice and Strong Institutions

The Constitution has provided for an independent judiciary with a network of courts from the district level to the Supreme Court. Do you think this has successfully provided access to justice to all people? C-6.1

DIVISION OF POWERS BETWEEN THE CENTRE AND THE STATES

For a large country like India, the Constitution explains how power should be shared between the union and state governments. The diagram shows you this.

ALLOCATION OF RESPONSIBILITIES IN INDIA'S FEDERAL STRUCTURE

UNION GOVERNMENT
Some of its responsibilities are: the railways, the defence of India, and minting of coins and printing of money. This is called the **'Union List'**.

STATE GOVERNMENTS
Some of their responsibilities are: the police, law and order within the state and transport and roads within the state. This is called the **'State List'**.

UNION AND STATE GOVERNMENTS
Their combined responsibilities are: education, electricity, and forests and wildlife. These are on the **'Concurrent List'** of the Constitution.

UNION TERRITORIES

The union territories are governed directly by the union government through an **administrator** for each union territory. Some union territories, for example the National Capital Territory of Delhi, have legislatures.

Discuss

Communication

21st Century Skills

State governments, which are elected by the people of the state, have been given several powers by the Constitution. Why is this important in India? C-6.1

India is a huge and functioning democracy. A major reason for this is the care, discussions and wisdom of the members of the Constituent Assembly.

Knowledge of India

Whereas countries like the USA are older democracies, India is the largest democracy in the world with over 900 million eligible voters. C-6.1

Values and Life Skills

The governments and the judiciary have responsibilities towards the Indian people. What are your responsibilities towards those around you? How do you make sure that you carry them out?

REMEMBER

India's Democratic Government

- The powers of the Indian state are divided between the legislature, the executive and the judiciary.
- A system of checks and balances ensures that democracy functions smoothly.
- India has a federal structure where power is shared by the union and state governments.
- The legislatures and executives at the centre and in the states are similar in many ways.
- The judiciary is one unified system throughout the country.
- Responsibility is divided between the centre and the states, but some is shared.

NEW WORDS

State	a country controlled by one government
Federal	a system of government where the states of a country have control over their own affairs, but are controlled by a central government for national decisions
Dispute	a disagreement between two people, groups or countries
Administrator	a person who manages a company or an institution

EXERCISES

Remembering and Understanding

A. Choose the correct answer.

1. In a democracy the state is governed according to its constitution/as the government likes/by following the laws of the state.
2. The Indian has 5/3/4 branches.

3. Indian states make laws for the whole country/their own state/their state and neighbouring states.
4. The executive/legislative/judicial branch of the state has ministers who make sure that the policies of the government are carried out.
5. Read the statements below and choose the correct option.

   Statement (A): The legislature and the executive are different at the centre and in the states.
   Statement (B): The judiciary of the entire country is one system.
   (a) Both A and B are true, and B is the correct explanation of A.
   (b) Both A and B are true, but B is not the correct explanation of A.
   (c) A is true but B is false.
   (d) A is false but B is true.

B. Fill in the blanks.

1. ..... means a country that is controlled by one government.
2. The ..... is the head of the country and the ..... is the head of a state.
3. The Supreme Court is the ..... court in India.
4. The judiciary explains the meaning of the ..... when it is not clear.
5. The ..... also makes sure that people get justice.

C. Write true or false. Correct the false sentences in your notebook.

1. Legislatures have no control over how the government manages its money.
2. In a federal structure, power is divided between the union and state governments.
3. The real power in the central government is with the Prime Minister and in the state with the Chief Minister.
4. The Concurrent List mentions the powers that are shared by the union and state governments.
5. The judiciary does not protect the rights and freedoms of Indian citizens.
6. Disputes are settled by the legislatures according to the law.

D. Match the following.

A	B
1. Rashtrapati	(a) Legislative assembly
2. Rajyapal	(b) Member of Parliament
3. Vidhan Sabha	(c) President
4. MP	(d) Member of Legislative Assembly
5. MLA	(e) Governor

E. Answer the following questions.

1. Explain in a short paragraph why a system of checks and balances is important in a democracy.
2. Give two differences and two similarities between the legislatures at the centre and in the states.
3. Name the three lists under which power is shared between the centre and the states. Give one example of the subject under each list.
4. Explain the pyramid-shaped structure of the judiciary with the help of a diagram.
5. How are union territories different from the states of India?

DO AND LEARN

A. Picture Study

Look at the pictures and answer the question:
Why it is important for all MPs or MLAs to meet together in Parliament or the Legislative Assemblies? C-6.1 Analytical

The Legislative Assemblies of Kerala and Uttar Pradesh

TP

B. On Your Own

1. Find out the names of the governor and the chief minister of your state.
2. Find out which countries have a monarchy—a government where a king or queen is the head of state. Research-based

TP

C. In a Group

Make a PowerPoint or chart presentation of the three branches of government, with illustrations. Include the responsibilities of each branch. Applying SI Arts Education

D. Pair and Share:

With your partner in class, discuss why a 'budget' is necessary for a country or state to function. C-6.1 Communication

Weblink For more information, go to:

- **Structure of Indian Government (Legislative, Executive & Judiciary):** https://www.youtube.com/watch?v=4oy0ZIHXUhA (Accessed on 31 July 2025)

What I Learnt

Self-review

Colour the smileys to show how well you have understood the concepts.	Completely	Mostly	Need help
• I can identify the key features of India's government.	☺	☺	☺
• I can state the main functions of the executive, legislature and judiciary and explain the system of checks and balances.	☺	☺	☺
• I can explain the federal structure of government and identify the bodies that function in the centre and in the states.	☺	☺	☺
• I can recognize the division of power between the centre and the states.	☺	☺	☺
• I can evaluate the structure of government in the union teritories.	☺	☺	☺